

Shilpi Pal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 April 2024 · 2024:AHC:69642-DB · WRIT - C No. - 12878 of 2024 · **Writ disposed; petitioner left to Supply Code forums.**

HEADNOTE

Division Bench declined Article 226 interference over a disputed rejection of an electricity connection and disposed of the writ, leaving the petitioner to statutory forums under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Shilpi Pal applied for an electricity connection. The Executive Engineer, Vidyut Vitaran Nigam Ltd., Agra Block Etmadpur, District Agra, rejected that application by communication dated 5 March 2024. She then petitioned the Allahabad High Court under Article 226 of the Constitution against the State of Uttar Pradesh and the distribution licensee, seeking interference with the rejection. Sri Mata Prasad, holding brief of counsel for respondent nos. 2 to 4, was present at the hearing.

HOLDING-UNITS

INTERPLAY · UP-2005

statutory forums

HOLDING

Where a fact dispute exists over rejection of a connection application, Article 226 interference is declined and the petitioner is left to the statutory forums under the Electricity Supply Code, 2005. ¶ 2

FLAG clause unspecified; court named only statutory forums under the 2005 Code

PRINCIPLE TAGS

relegate-to-statutory-remedy Division Bench declined Article 226 interference over a disputed rejection of an electricity connection and disposed of the writ, leaving the petitioner to statutory forums under the Electricity Supply Code, 2005. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 5.3.2024 REJECTION OF THE CONNECTION APPLICATION

Writ declined because of a fact dispute; petitioner left to Supply Code forums. ¶ 2